

August 17, 2026
Dept. 9
Probate Tentative Rulings

9.	25PR0283	ESTATE OF JACK PEFLEY
OSC/MOTION HEARING		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 17, 2026.

On July 2, 2026, Petitioner, Anthony Brian Pefley ("Petitioner"), filed a Motion to Vacate and Retract Respondent's Verbal Resignation as Successor Trustee. On the same date, Petitioner filed an Order to Show Cause re: Vacating Verbal Resignation, Limited Restoration of Trustee Status, Passport Surrender, Travel Restrictions, Turnover, Sanctions, and Contempt.

A Proof of Service by Mail was filed on July 24, 2026, indicating an "OSC Notice of Hearing and Exhibits 1-68" were served on July 24, 2026. The Proof of Service does not indicate how the documents were served as required in violation of Code of Civil Procedure § 1013a. Additionally, it is unclear which documents were served. The Court is not in receipt of "Exhibits 1-68" and there are two motions on calendar. The Proof of Service is not in compliance with Code of Civil Procedure § 1013a, which requires the exact title of the document served and filed.

Petitioner's request is denied due to defective service.

TENTATIVE RULING #9:

PETITION IS DENIED WITHOUT PREJUDICE DUE TO DEFECTIVE SERVICE.